

Arun Kumar Rai v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 February 2025 · 2025:AHC:28166-DB · WRIT - C No. - 6007 of 2025 · **Writ petition dismissed; relegated to clause 7.10 forum and pending civil appeal.**

HEADNOTE

Writ against disconnection dismissed. A person aggrieved by an action of the electricity department has a remedy before the Redressal Forum under clause 7.10 of the Electricity Supply Code; the petitioner also has a pending civil appeal against the decree that led to mutation. The High Court refused to interfere in view of those alternative remedies.

FACTUAL SUMMARY

The petitioner, Arun Kumar Rai, challenged orders dated 24.03.2023, 21.03.2023, 06.02.2025 and 11.02.2025 by which electricity connection No. 9857367247 standing in his name was disconnected by the distribution licensee. The respondents justified the disconnection on the strength of a prohibitive-injunction decree of the First Appellate Court, pursuant to which mutation had been effected in their favour. The petitioner asserted that a time-barred appeal against that decree was pending.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-forum-as-alternative-remedy

HOLDING

A person aggrieved by disconnection or other action of the electricity department has a remedy before the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code. Where that forum is available, and a civil appeal against the decree that prompted mutation and disconnection is also pending, the High Court will not interfere in writ jurisdiction. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DISCONNECTION OF CONNECTION NO. 9857367247 WAS LAWFUL ON THE STRENGTH OF THE CIVIL DECREE AND MUTATION

¶ 4-6